

Amendment No. 5 to HB0662

Parkinson
Signature of Sponsor

AMEND Senate Bill No. 714

House Bill No. 662*

by deleting subsection (e) of Section 1 and substituting:

(e) An educational oversight board shall:

(1) Advise, and make recommendations to, the local board of education on how to improve the LEA;

(2) Annually conduct a comprehensive needs assessment of the LEA to examine and determine the factors that may be causing or contributing to the LEA meeting the description in subsection (a). In conducting each comprehensive needs assessment, the oversight board shall:

(A) Identify the number of teachers employed by the LEA who:

(i) Teach a course or grade level for which the teacher holds the required educator license or endorsement;

(ii) Hold an emergency teaching credential issued by the department of education or state board of education; and

(iii) Have three (3) or more years of teaching experience;

(B) Calculate, from the total number of teachers and principals employed by the LEA, the number who earned a level of overall effectiveness score on their most recent annual evaluation conducted pursuant to § 49-1-302 in each of the following categories:

(i) Significantly below expectations;

(ii) Below expectations;

(iii) At expectations;

- (iv) Above expectations; and
 - (v) Significantly above expectations;
- (C) Determine the teacher retention rate for the LEA;
- (D) Ascertain whether the LEA is complying with the maximum class size and average class size requirements in § 49-1-104, including the number of any maximum class size or average class size waivers approved for the LEA by the commissioner;
- (E) Evaluate the quality, quantity, format, availability, and appropriateness of the textbooks, instructional materials, supplemental instructional materials, and curricula selected for, and used in, the public schools managed and controlled by the LEA's local board of education;
- (F) Identify the parental involvement strategies, if any, utilized by the LEA and the effectiveness of any such strategies;
- (G) Evaluate the capacity, quality, and effectiveness of the mentoring program provided by the LEA for:
 - (i) Newly licensed teachers; and
 - (ii) Experienced teachers who have less than two (2) years of experience teaching the subject area or grade level for which the teacher is assigned;
- (H) Examine the professional development opportunities made available for, and those provided to, teachers employed by the LEA;
- (I) Conduct a demographic analysis of the student population served by the LEA, including all at-risk and special education populations;
- (J) Review all available information related to student and teacher disciplinary incidents, issues, reports, and complaints, as well as all school-safety-related issues, incidents, and threats;
- (K) Review all financial statements and accounting practices;

(L) Examine the needs, costs, and usage of all buildings and facilities owned or operated by the LEA, including all maintenance needs;

(M) Identify any grant opportunities available to the LEA that may serve to improve areas of insufficient performance; and

(N) Review any other information, records, statistics, policies, and practices available to the oversight board that the oversight board deems relevant to identifying areas of insufficient performance or need in order to improve the LEA's performance. The local board of education for the LEA and each public school managed and controlled by the local board shall provide the oversight board with all information requested by the oversight board for purposes of conducting the comprehensive needs assessment or developing recommendations for the transformation plan. If the local board does not provide the oversight board with the information requested within sixty (60) days of the request, then the oversight board shall notify the commissioner of education and the commissioner shall withhold all or a portion of the state education funds that the LEA is otherwise eligible to receive until the local board complies with the oversight board's request; and

(3) Submit the comprehensive needs assessment and any recommendations to the local board of education and department of education.